

PUBLIC INTERNATIONAL LAW

UNIT V — International Organisations

League of Nations · United Nations · ICJ · ICC · WHO · UNESCO · ILO · IMF
· WTO

LLB (3 YDC) | 4th Semester | Osmania University

Target: 75+ Marks | Aug/Sep Examination

📋 TABLE OF CONTENTS & STAR RATINGS

SECTION	TOPIC	MARKS	RATING
UNIT OVERVIEW	What's IN, What's NOT, Predictions, Key Numbers	—	—
PART A — Q1	League of Nations — Structure & Failure	6	★★★★★★
PART A — Q2	United Nations — Structure & Purposes	6	★★★★★★
PART A — Q3	UN Security Council — Powers & Veto	6	★★★★★★
PART A — Q4	International Court of Justice (ICJ)	6	★★★★★★
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PART B — Q1	ICJ: Powers, Functions & Jurisdiction (2024 Q12)	15	★★★★★★
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PART B — Q3	League of Nations vs United Nations (Comparative Essay)	15	★★★★★★
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PART C — IRAC 2	UNSC Chapter VII Action Problem	10	★★★★★☆
MASTER REVISION	All Orgs, Key Numbers, Cases, Mnemonics, Traps	—	—

UNIT V — OVERVIEW & EXAM STRATEGY

✓ TOPICS COVERED IN THIS UNIT

- League of Nations — establishment, structure, failure
- United Nations — Charter, 6 principal organs, purposes & principles
- UN Security Council — composition, powers, Chapter VII, veto
- International Court of Justice (ICJ) — composition, jurisdiction, advisory opinions
- International Criminal Court (ICC) — Rome Statute, crimes, complementarity
- Specialized Agencies: WHO, UNESCO, ILO, IMF, WTO

✗ TOPICS NOT IN THIS UNIT

- Sources, Nature, Codification → Unit I
- State Recognition, Succession, Territory → Unit II
- Extradition, Asylum, Diplomatic Immunity, Treaties → Unit III
- Law of Sea, Airspace, Outer Space → Unit IV

📍 PREDICTED EXAM QUESTIONS (2025)

- FROM 2024 PAPER Q12 (Part B): Powers, functions and jurisdiction of ICJ — DIRECTLY answered in Essay B1
- MOST LIKELY Part B: United Nations — structure and role; League vs UN comparison
- VERY LIKELY Part A: ICC (Rome Statute, complementarity); UN Security Council (veto, Chapter VII)
- LIKELY Part A: WHO (IHR 2005); UNESCO; ILO (tripartite); WTO (DSB)

1 2 3 4 CRITICAL NUMBERS — MASTER LIST

LEAGUE OF NATIONS: Established 1919 (Versailles Treaty); Dissolved 1946
UN: Established 1945 (San Francisco); Charter in force October 24, 1945 — UN Day
UN Original members: 51 States; Current members: 193 States
UN HQ: New York City
UNSC: 15 members — 5 Permanent (P5: USA, UK, France, Russia, China) + 10 Elected (2-year terms)
UNGA: All 193 members; each State = 1 vote
ICJ: 15 judges; 9-year terms (staggered); HQ The Hague, Netherlands
ICJ: No two judges of same nationality; elected by UNGA + UNSC
ICJ Statute Art. 36(2): Optional clause — States accept compulsory jurisdiction
ICC: Established by Rome Statute 1998; entered into force 2002; HQ The Hague
ICC: 18 judges; 4 crimes: Genocide, Crimes against humanity, War crimes, Aggression
ICC: Complementarity principle — ICC acts only when States unable/unwilling
India: NOT a party to Rome Statute (ICC)
USA, Russia, China: NOT parties to ICC

SPECIALIZED AGENCIES:
WHO: Established 1948; HQ Geneva; 194 members; IHR (International Health Regulations) 2005

UNESCO: Established 1945; HQ Paris; 'Education, Science, Culture'

ILO: Established 1919 (Versailles); HQ Geneva; Tripartite structure; Nobel Peace Prize 1969

IMF: Established 1944 (Bretton Woods); HQ Washington DC; SDR (Special Drawing Rights)

WTO: Established 1995 (replaced GATT 1947); HQ Geneva; 164 members; DSB



PART A — SHORT NOTES (6 Marks Each)

Definition + 4-5 key points + 1 case + 1 example + exam tip. ~1.5 pages. Time: 8-10 min.

Q1 — League of Nations ★★★★★

Definition

The League of Nations was the first universal international organisation for the maintenance of peace and security, established by the Covenant (Part I of the Treaty of Versailles, 1919). It operated from 1920 to 1946, when it was dissolved and replaced by the United Nations.

Structure

- Assembly: All member States — each had one vote. Met annually. Considered general questions.
- Council: Great Powers (permanent members: UK, France, Italy, Japan) + 4 elected members. Primary responsibility for peace.
- Secretariat: Administrative body — headed by Secretary-General. Geneva, Switzerland.
- Permanent Court of International Justice (PCIJ): Judicial arm — predecessor to ICJ.
- International Labour Organisation (ILO): Created simultaneously — still exists today.

Why the League Failed

1. USA never joined: US Senate rejected Versailles Treaty (1920) — League's chief architect (President Wilson) humiliated. No USA = No credibility.
2. Unanimity rule: Council decisions required unanimity — any member could veto action. Paralysed collective security.
3. No standing army: League had no military force — depended on member States to contribute — rarely happened.
4. Major power aggression ignored: Japan invaded Manchuria (1931), Italy invaded Ethiopia (1935-36), Germany remilitarised Rhineland (1936) — League condemned but took no effective action.
5. USSR expelled (1939) after invading Finland — but too late to matter.
6. Germany, Japan, Italy withdrew — League powerless against Axis powers.
7. Outbreak of WW2 (1939) — League's complete failure.

 League's fatal flaws: No USA + Unanimity rule + No military force = Could not enforce collective security.

 *Example: Ethiopia (Abyssinia) Crisis 1935-36: Italy invaded Ethiopia — League imposed economic sanctions but excluded oil — Italy conquered Ethiopia. League's paralysis demonstrated.*

 **Case: Eastern Carelia Case (PCIJ, 1923)** — PCIJ held it could not give advisory opinion on matter where one party (Soviet Russia, non-League member) did not consent — showed League's jurisdictional limits.

 **EXAM TIP:** League vs UN comparison is a HIGH-PROBABILITY exam question. Key differences: USA in UN (not League); UNSC veto replaces unanimity; UN has Chapter VII enforcement; ICJ replaces PCIJ. Established: League 1919, UN 1945.

Q2 — United Nations — Structure & Purposes ★★★★★

Definition

The United Nations (UN) is the premier universal international organisation established by the UN Charter (signed San Francisco, June 26, 1945; entered into force October 24, 1945 — UN Day). It has 193 member States and is headquartered in New York City.

Purposes (Art. 1 UN Charter)

- 1. Maintain international peace and security — take effective collective measures for prevention and removal of threats.
- 2. Develop friendly relations among nations based on equal rights and self-determination of peoples.
- 3. Achieve international cooperation in solving economic, social, cultural, humanitarian problems; promote human rights.
- 4. Centre for harmonising actions of nations in attaining these common ends.

Six Principal Organs (Art. 7 Charter)

- 1. General Assembly (UNGA): All 193 members; each = 1 vote; Art. 18 — important questions require 2/3 majority; ordinary questions = simple majority. Meets annually (September). Plenary deliberative body.
- 2. Security Council (UNSC): 15 members; 5 Permanent (P5) + 10 non-permanent (2-year terms). Primary responsibility for peace and security. Chapter VII = binding enforcement powers.
- 3. Economic and Social Council (ECOSOC): 54 members; coordinates economic, social, humanitarian work of UN and specialised agencies.
- 4. Trusteeship Council (TC): Supervised non-self-governing territories — suspended operations 1994 when Palau (last trust territory) became independent.
- 5. International Court of Justice (ICJ): Principal judicial organ — 15 judges; The Hague.
- 6. Secretariat: Administrative organ — headed by Secretary-General (Art. 97). Current: António Guterres (Portugal) — since 2017.

Principles (Art. 2 UN Charter)

- Sovereign equality of all members (Art. 2(1)).
- Good faith performance of Charter obligations (Art. 2(2)).
- Peaceful settlement of disputes (Art. 2(3)).
- Prohibition of threat or use of force (Art. 2(4)) — foundational rule of modern int'l law.
- Non-intervention in domestic affairs (Art. 2(7)) — but not applicable to Chapter VII enforcement.

 Art. 2(4) UN Charter: Prohibition on threat or use of force = cornerstone of modern international law. Breach = act of aggression. Exceptions: Self-defence (Art. 51); UNSC Chapter VII authorisation.

 Example: India joined UN as original member in 1945 — one of 51 founding members. India's seat in UNSC: India has served as non-permanent member multiple times (most recently 2021-2022).

⚖️ **Case:** *Certain Expenses of the United Nations (ICJ Advisory Opinion, 1962)* — ICJ held UNGA has power to authorise peacekeeping expenses — confirmed broad powers of UNGA even in peace and security matters.

💡 **EXAM TIP:** 6 organs: 'GASTSI' = General Assembly, (Security Council), Trusteeship Council, Secretariat, ICJ. Or simply: GA, SC, ECOSOC, TC, ICJ, Secretariat. Art. 2(4) = prohibition on force = MOST important Charter provision.

Q3 — UN Security Council — Powers & Veto ★★★★★

Definition

The UN Security Council (UNSC) is the principal organ of the UN responsible for the maintenance of international peace and security. It is the only UN organ whose decisions are **BINDING** on all member States under Article 25 of the UN Charter.

Composition

- 15 members: 5 Permanent (P5) + 10 Non-Permanent (elected by UNGA for 2-year terms; not immediately re-eligible).
- P5: USA, United Kingdom, France, Russian Federation, China (People's Republic).
- Non-permanent seats: Distributed by regional groups — Africa (3), Asia-Pacific (2), Latin America (2), Western Europe (2), Eastern Europe (1).

Voting & Veto

- Procedural matters: 9 of 15 votes — P5 abstention or absence does NOT constitute veto.
- Substantive matters: 9 of 15 votes **INCLUDING** concurring votes of ALL P5 (Art. 27(3)).
- VETO: Any P5 member's negative vote = veto — blocks the resolution. No substantive UNSC action possible if any P5 vetoes.
- Abstention by P5 ≠ Veto on substantive matters — controversial but established practice (see: UNSC Resolution 1973 on Libya — Russia/China abstained but did not veto).

 **Veto power: ONE P5 negative vote = VETO. Paralyzes UNSC. Cold War era: USSR/Russia and USA frequently vetoed each other's resolutions. India seeks permanent membership + veto reform.**

Powers Under Chapter VI & VII

- Chapter VI (Pacific Settlement): UNSC may investigate, recommend procedures for peaceful settlement — NOT binding on parties.
- Chapter VII (Action w.r.t. Threats to Peace): If UNSC determines threat to peace, breach of peace, or act of aggression (Art. 39):
 - Art. 40: Provisional measures — call for ceasefire, withdrawal.
 - Art. 41: Non-military measures — economic sanctions, severance of diplomatic relations, communications embargo.
 - Art. 42: Military measures — air, sea, land operations — when Art. 41 insufficient.
- Chapter VII resolutions **BINDING** on all UN members (Art. 25).

 *Example: UNSC Resolution 1368 (2001): After 9/11 attacks — UNSC determined it was threat to peace, authorised use of force against Al-Qaeda/Taliban — basis for USA-led Afghanistan intervention.*

 *Example: UNSC Resolution 1973 (2011): Libya — authorised 'all necessary measures' to protect civilians — NATO military intervention. Russia/China abstained; did not veto.*

 **Case: Nicaragua v. USA (ICJ, 1986)** — UNSC was unable to act due to USA veto — Nicaragua brought case to ICJ. ICJ held it had jurisdiction — UNSC political paralysis did not deprive ICJ of

jurisdiction over legal questions.

⚖️ **Case: *Lockerbie Case (ICJ, 1992)*** — Libya challenged UNSC Resolution 748 (sanctions) before ICJ. ICJ held: in conflict between ICJ Statute and UNSC Chapter VII resolution — Charter Art. 103 prevails — UNSC resolution overrides treaty obligations.

💡 **EXAM TIP:** Chapter VI = Peaceful; Chapter VII = BINDING enforcement. Veto = P5 negative vote. Art. 25 = UNSC decisions binding. Art. 103 = UN Charter prevails over other treaties. India = UNSC reform advocate — 'G4' grouping (India, Germany, Japan, Brazil) seeking permanent seats.

Q4 — International Court of Justice (ICJ) ★★★★★

Definition

The International Court of Justice (ICJ) is the principal judicial organ of the United Nations (UN Charter Art. 92) and the world's primary international court. It settles legal disputes between States and gives advisory opinions on legal questions. HQ: Peace Palace, The Hague, Netherlands.

Composition

- 15 judges elected by UNGA and UNSC voting simultaneously — require absolute majority in both.
- 9-year terms — staggered (5 elected every 3 years).
- No two judges of the same nationality.
- Independence: Judges serve in personal capacity — not as representatives of their States.
- Ad hoc judges: If a party has no judge of its nationality on the bench, it may appoint one ad hoc judge.
- Current President: Nawaf Salam (Lebanon) — since February 2024.

Jurisdiction — Contentious Cases

- ONLY States may be parties (Art. 34 ICJ Statute) — individuals, corporations, NGOs CANNOT bring cases.
- Jurisdiction is CONSENSUAL — Court has jurisdiction only if both parties consent.
- Four bases of jurisdiction:
 - 1. Special Agreement (Compromis): Both States agree to submit a specific dispute.
 - 2. Treaty Clause: Treaty includes clause conferring ICJ jurisdiction.
 - 3. Optional Clause (Art. 36(2)): States make declaration accepting compulsory jurisdiction for disputes with other States that have made similar declarations. 74 States have accepted.
 - 4. Forum Prorogatum: Jurisdiction accepted after case filed — by conduct.

Advisory Jurisdiction

- Only UN organs and specialised agencies authorised by UNGA can request advisory opinions (Art. 65 ICJ Statute).
- Advisory opinions NOT legally binding — but carry great legal authority.
- Examples: Nuclear Weapons Advisory Opinion (1996); Kosovo Independence (2010); Wall in Palestinian Territory (2004); Chagos Islands (2019).

Limits of ICJ

- No compulsory jurisdiction — State consent required.
- No enforcement mechanism — UNSC can enforce ICJ decisions (Art. 94 Charter) but veto power prevents this.
- Cannot try individuals — only States (ICC handles individuals).
- Advisory opinions not binding.

🟡 Art. 36(2) — Optional Clause: States accepting compulsory ICJ jurisdiction. India HAS NOT made Optional Clause declaration — India accepts ICJ jurisdiction only by special agreement or treaty.

📌 *Example: Nicaragua v. USA (1986): USA withdrew Optional Clause declaration after ICJ accepted jurisdiction. USA did not participate in merits phase — ICJ proceeded in default and awarded \$17 billion against USA.*

⚖️ **Case: *Nicaragua v. USA (ICJ, 1986)*** — USA's withdrawal of optional clause declaration after case filed was too late — ICJ retained jurisdiction. Held USA violated int'l law — ordered reparations. USA vetoed UNSC enforcement.

⚖️ **Case: *Nuclear Weapons Advisory Opinion (ICJ, 1996)*** — ICJ advised: use or threat of nuclear weapons generally contrary to int'l law — but could not definitively rule on extreme self-defence scenario. Classic advisory opinion.

⚖️ **Case: *Legal Consequences of Construction of a Wall (ICJ, 2004)*** — Israel's wall in Palestinian territories violates int'l law — advisory opinion. Not binding but politically significant.

💡 **EXAM TIP: ICJ vs ICC: ICJ = States only, civil disputes + advisory opinions. ICC = individuals, criminal liability. ICJ HQ = The Hague. ICC HQ = The Hague. Both in same city — different institutions. India: ICJ Statute party (via UN) but NOT ICC Rome Statute party.**

Q5 — International Criminal Court (ICC) ★★★★★

Definition

The International Criminal Court (ICC) is a permanent international court that tries individuals (not States) for the most serious crimes of international concern. It was established by the Rome Statute (adopted July 17, 1998; entered into force July 1, 2002). HQ: The Hague, Netherlands. 124 State parties.

Crimes under Rome Statute (Art. 5)

- 1. Genocide (Art. 6): Acts committed with intent to destroy, in whole or in part, a national, ethnical, racial, or religious group — killing, causing serious bodily/mental harm, conditions of destruction, imposing birth prevention, forcible transfer of children.
- 2. Crimes Against Humanity (Art. 7): Widespread or systematic attack directed against any civilian population — murder, extermination, enslavement, deportation, torture, rape, apartheid, enforced disappearance, etc.
- 3. War Crimes (Art. 8): Grave breaches of Geneva Conventions; other serious violations of laws of war — both international and non-international armed conflicts.
- 4. Crime of Aggression (Art. 8 bis, added by Kampala Amendments 2010; entered into force 2018): Planning, preparing, initiating, executing an act of aggression by a person in leadership position.

■ ICC Rome Statute Art. 5: FOUR crimes — Genocide, Crimes Against Humanity, War Crimes, Aggression. 'GCWA' — remember these four only.

Key Principles

- Complementarity (Art. 17): ICC acts only when national courts are UNABLE or UNWILLING to genuinely investigate/prosecute. ICC is court of LAST RESORT — not first resort.
- No immunity (Art. 27): Official capacity (Head of State, government minister) NO defence before ICC.
- No prescription: No statute of limitations for ICC crimes.
- Non-retroactivity (Art. 11): ICC jurisdiction only for crimes committed AFTER Rome Statute entered into force (July 1, 2002).
- Individual criminal responsibility (Art. 25): Only individuals — not States — tried before ICC.

Structure

- 18 judges — elected by State Parties Assembly; 9-year non-renewable terms.
- Presidency; Pre-Trial Division; Trial Division; Appeals Division.
- Office of the Prosecutor: Independent — investigates and prosecutes.
- Registry: Administrative arm.

Limitations of ICC

- Major powers NOT parties: USA, Russia, China, India — NOT parties to Rome Statute.

- African bias criticism: Most ICC cases have involved African defendants — AU called for mass withdrawal.
- No police force: Depends on State cooperation for arrest — many fugitives remain at large.
- UNSC referral: Non-party States' situations can be referred to ICC by UNSC (Chapter VII) — but USA, Russia, China can veto such referrals.

📌 *Example: Omar Al-Bashir (Sudan): ICC issued arrest warrants for sitting President of Sudan for genocide in Darfur (2009, 2010) — first sitting Head of State indicted by ICC. Sudan not ICC party — UNSC referred situation. Al-Bashir evaded arrest for years; Sudan surrendered him after his removal (2019).*

📌 *Example: Vladimir Putin (Russia): ICC issued arrest warrant (March 2023) for war crimes in Ukraine — deportation of Ukrainian children. Russia not party — Russia rejected warrant.*

📌 **Case: Prosecutor v. Thomas Lubanga Dyilo (ICC, 2012)** — First ever ICC conviction — Congolese warlord convicted of war crime of conscripting/enlisting child soldiers. Sentenced to 14 years — landmark ICC case.

📌 **Case: Prosecutor v. Al-Bashir (ICC, 2009-10)** — Arrest warrants for Sudan's President — first sitting Head of State indicted by ICC. Art. 27 — no immunity for official capacity. Demonstrated ICC's reach.

💡 **EXAM TIP: ICJ vs ICC: ICJ = States, civil/territorial disputes. ICC = Individuals, 4 criminal offences. Complementarity = ICC is LAST RESORT. India not ICC party. Lubanga = first conviction. Putin = current arrest warrant (2023).**

Q6 — World Health Organisation (WHO) ★★☆☆☆

Definition

The World Health Organisation (WHO) is the UN specialised agency responsible for international public health. Established April 7, 1948 (World Health Day). HQ: Geneva, Switzerland. 194 member States — the highest membership of any UN specialised agency.

Key Points

- Constitution (1948): WHO's founding document — defines health as 'a state of complete physical, mental and social well-being and not merely the absence of disease or infirmity.'
- Structure: World Health Assembly (supreme decision-making body — all 194 members, meets annually); Executive Board (34 members); Secretariat (headed by Director-General).
- Current DG: Dr. Tedros Adhanom Ghebreyesus (Ethiopia) — since 2017.
- Functions: Setting global health standards; coordinating responses to health emergencies; supporting research; technical assistance to developing countries.
- International Health Regulations (IHR) 2005: Binding on all 194 WHO members — requires States to report disease outbreaks of international concern to WHO within 24-48 hours; limits on travel/trade restrictions.
- Public Health Emergency of International Concern (PHEIC): Declared by WHO DG — triggers international response. Examples: H1N1 (2009), Ebola (2014), Zika (2016), COVID-19 (2020).

 IHR 2005 — International Health Regulations: Legally binding on 194 States. Notification of PHEIC within 24-48 hours. Governs global pandemic response — relevant after COVID-19.

 *Example: COVID-19 (2020): WHO declared PHEIC on January 30, 2020 and pandemic on March 11, 2020. IHR 2005 framework — States obligated to report, cooperate. India locked down by March 25, 2020.*

 **Case:** *WHO Advisory Opinion on Legality of Nuclear Weapons (ICJ, 1996)* — WHO asked ICJ for advisory opinion on nuclear weapons and health. ICJ held WHO lacked authority to request this opinion — only UNGA/UNSC could ask on this topic. Shows limits of specialised agency authority.

 **EXAM TIP:** WHO facts: 1948 established; Geneva; 194 members (highest); IHR 2005 = binding. PHEIC = emergency declaration. COVID-19 declared pandemic March 11, 2020. Health definition from WHO Constitution = classic exam question.

Definition

UNESCO (United Nations Educational, Scientific and Cultural Organisation) is a UN specialised agency promoting peace and security through international cooperation in education, science, culture, and communication. Established November 16, 1945; HQ: Paris, France. 194 member States.

Key Points

- Constitution (1945): 'Since wars begin in the minds of men, it is in the minds of men that the defences of peace must be constructed.' — UNESCO's founding philosophy.
- Structure: General Conference (all members, every 2 years); Executive Board (58 members); Secretariat (headed by Director-General — currently Audrey Azoulay, France, since 2017).
- Functions: Promotes universal education (Education for All); scientific cooperation; cultural heritage protection; press freedom and media development.
- World Heritage Sites: UNESCO designates natural and cultural sites of 'outstanding universal value' — 1,199 sites in 168 countries (as of 2023).
- India's World Heritage Sites: 42 sites including Taj Mahal, Qutb Minar, Ajanta Caves, Hampi, Kaziranga National Park, Hoysala temples (2023).
- Memory of the World Programme: Preserves significant documentary heritage.
- Conventions: Convention on the Means of Prohibiting Illicit Import/Export of Cultural Property (1970); Convention for Safeguarding Intangible Cultural Heritage (2003).

 UNESCO Constitution opening: 'Wars begin in the minds of men — defences of peace must be constructed in minds of men.' = Classic exam quote. World Heritage = 1,199 sites globally; India = 42 sites.

 *Example: USA withdrew from UNESCO in 2017 (rejoined 2023) citing anti-Israel bias. Palestine's admission to UNESCO (2011) triggered US funding cut under US law. Shows political dynamics of specialised agencies.*

 **EXAM TIP:** UNESCO: 'Education, Science, Culture' = ESC. Paris HQ. 1945 established. World Heritage Sites = UNESCO. India = 42 World Heritage Sites. Constitution quote = 'Wars begin in minds of men' — examiners love this.

Q8 — ILO, IMF & WTO ★★★★★

ILO — International Labour Organisation

ILO is the UN specialised agency for labour standards and decent work. OLDEST specialised agency — established 1919 (Part XIII, Treaty of Versailles), same year as League of Nations. HQ: Geneva. 187 member States. Won Nobel Peace Prize 1969.

- Unique structure: TRIPARTITE — each member State represented by 3 delegates: 2 Government + 1 Employer + 1 Worker (Trade Union). Only international organisation where non-State actors have voting rights.
- International Labour Conference (ILC): General Assembly equivalent — meets annually; adopts Conventions and Recommendations.
- Governing Body: Executive body — 56 members (28 government, 14 employer, 14 worker).
- Core Conventions (ILO Declaration 1998 — Fundamental Principles): Freedom of association & collective bargaining; elimination of forced labour; abolition of child labour; elimination of discrimination in employment.
- India and ILO: India founding member (1919). India's Labour Codes (2019-20) aimed at simplifying 44 central labour laws — influenced by ILO standards.

 *Example: ILO Convention 169 (Indigenous Peoples): International standard for indigenous workers' rights. India has NOT ratified this convention.*

IMF — International Monetary Fund

IMF is the UN specialised agency promoting international monetary cooperation, exchange rate stability, and economic growth. Established 1944 (Bretton Woods Conference, New Hampshire, USA). HQ: Washington D.C. 190 member States.

- Established alongside World Bank — 'Bretton Woods institutions' or 'twin sisters'.
- Special Drawing Rights (SDR): IMF's unit of account — basket of 5 currencies (USD, EUR, GBP, CNY, JPY). Allocated to members as reserves.
- Voting: Quota-based system — larger economies have more votes (weighted voting). USA has largest quota — effective veto on major decisions.
- Functions: Surveillance of member economies; financial assistance (balance of payments support); technical assistance and training.
- Conditionality: IMF loans come with policy conditions (austerity, structural reforms) — controversial for developing countries.
- India and IMF: India borrowed from IMF multiple times (1991 balance of payments crisis — turned to IMF; reforms followed). Currently India is a creditor country — lends to IMF.

 *Example: 1991 India economic crisis: India pledged gold reserves to Bank of England as collateral to secure IMF loan — triggered liberalisation reforms under PM Narasimha Rao/FM Manmohan Singh.*

WTO — World Trade Organisation

WTO is the international organisation regulating global trade. Established January 1, 1995 — replaced GATT (General Agreement on Tariffs and Trade, 1947). HQ: Geneva, Switzerland. 164

member States (India founding member 1995).

- GATT 1947: Post-WW2 trade framework — multilateral rules for tariff reduction and non-discrimination. Succeeded by WTO.
- Core Principles: Most-Favoured Nation (MFN) — non-discrimination between trading partners; National Treatment — imported goods treated same as domestic.
- Structure: Ministerial Conference (every 2 years — supreme body); General Council; Dispute Settlement Body (DSB).
- Dispute Settlement Body (DSB): WTO's most powerful feature — compulsory, binding dispute resolution. Panels → Appellate Body → Arbitration. Decisions binding.
- Agreements: GATT (goods); GATS (services); TRIPS (intellectual property); SPS Agreement; TBT Agreement.
- India and WTO: India founding member; active participant — has brought and defended many cases. India protects Public Distribution System (food security) — negotiated Peace Clause in Bali (2013).

 *Example: USA-India WTO dispute on solar panels: USA challenged India's domestic content requirement under National Solar Mission — WTO Panel ruled against India (2016). India appealed.*

 **Case: India-Agricultural Products (WTO DS430)** — Japan challenged India's import restrictions on poultry/eggs after avian flu — WTO panel ruled India's restrictions exceeded SPS Agreement standards.

 **EXAM TIP:** ILO = Tripartite (Government + Employer + Worker) + 1919. IMF = Bretton Woods 1944 + SDR + Washington DC. WTO = 1995, replaced GATT 1947, DSB = binding disputes + Geneva. Mnemonic: 'ILO is OLD (1919), IMF is MONEY (Bretton Woods), WTO is TRADE (1995).'



LEAGUE OF NATIONS vs UNITED NATIONS — MASTER COMPARISON

BASIS	LEAGUE OF NATIONS	UNITED NATIONS
Established	1919 (Versailles Treaty); operative 1920	1945 (UN Charter, San Francisco); operative Oct 24, 1945
Dissolved	1946	Still in existence
Membership	~63 members (peak); USA never joined	193 members — near universal
HQ	Geneva, Switzerland	New York City, USA
Founding document	Covenant (Part I, Versailles Treaty)	UN Charter (separate, comprehensive document)
Principal Organs	Assembly + Council + Secretariat + PCIJ + ILO	6 organs: GA, UNSC, ECOSOC, TC, ICJ, Secretariat
Decision-making	Unanimity rule — any member could veto (Council)	UNSC: P5 veto only; UNGA: majority/2/3 voting
Enforcement	No standing army; no binding enforcement	Chapter VII: binding military + non-military measures
Court	PCIJ (Permanent Court of Int'l Justice)	ICJ (International Court of Justice)
Collective Security	Failed — Manchuria, Ethiopia, WW2	Mixed — Korea, Gulf War, Libya; but veto limits
USA	Never a member	Founding member; permanent UNSC seat
USSR/Russia	Expelled 1939	Founding member; permanent UNSC seat
Individuals	Not addressed	ICC (Rome Statute 1998) tries individuals
Human Rights	Not expressly addressed	UDHR 1948; ICCPR; ICESCR; Human Rights Council
Why it failed	No USA + Unanimity + No military force + Major power defiance	Reformed — but UNSC veto remains major limitation



SPECIALISED AGENCIES — QUICK REFERENCE TABLE

Agency	Est.	HQ	Key Function	India Status
ILO	1919	Geneva	Labour standards; tripartite structure; Core Conventions	Founding member
FAO	1945	Rome	Food and agriculture; food security	Member
UNESCO	1945	Paris	Education, Science, Culture; World Heritage Sites	Member
WHO	1948	Geneva	Global public health; IHR 2005; PHEIC declarations	Member
IMF	1944	Washington DC	Monetary cooperation; balance of payments; SDR	Member
World Bank	1944	Washington DC	Development finance; poverty reduction	Member
WTO	1995 *	Geneva	International trade rules; DSB; MFN + National Treatment	Founding member
ICAO	1944	Montreal	Civil aviation standards; Chicago Convention	Member
ITLOS	1996	Hamburg	Law of the Sea disputes; UNCLOS	Member
IAEA	1957	Vienna	Atomic energy; nuclear non-proliferation	Member

* WTO replaced GATT (1947)



PART B — LONG ESSAYS (15 Marks Each)

4-5 pages per answer. Use headings. 3+ cases. Conclude with legal/constitutional basis. Time: 20-22 min.

Essay B1 — ICJ: Powers, Functions & Jurisdiction (Direct: 2024 Q12)



I. Introduction

The International Court of Justice (ICJ) is the principal judicial organ of the United Nations, established by the UN Charter (Art. 92) and governed by the Statute of the ICJ (annexed to the Charter). It represents the culmination of centuries of effort to establish a permanent international court capable of peacefully resolving disputes between States. Situated at the Peace Palace in The Hague, Netherlands, the ICJ exercises both contentious jurisdiction (deciding disputes between States) and advisory jurisdiction (delivering opinions to UN organs and specialised agencies).

📌 ICJ = Principal judicial organ of UN (Art. 92 Charter). Only States may be parties (Art. 34 Statute). ALL UN members automatically parties to ICJ Statute.

II. Composition and Organisation

- 15 independent judges — elected for 9-year renewable terms by UNGA and UNSC simultaneously; require absolute majority in both chambers.
- Staggered elections: 5 judges elected every 3 years — ensures continuity.
- No two judges of same nationality — ensures geographic diversity.
- Judges serve in personal capacity — not as State representatives.
- Chambers: ICJ may sit in full court or form chambers of 3+ judges for specific cases (Art. 26-29).
- Ad hoc judges (Art. 31): Party without a national on bench may appoint one ad hoc judge — to ensure at least one judge familiar with State's legal system.
- President: Elected by judges from among themselves for 3-year term. Casts deciding vote in tie.
- Quorum: 9 judges (Art. 25).

III. Contentious Jurisdiction — Disputes Between States

The ICJ's contentious jurisdiction (Art. 36, ICJ Statute) is the power to decide legal disputes submitted to it by States. This jurisdiction is STRICTLY CONSENSUAL — no State can be brought before the ICJ without its consent.

Basis 1 — Special Agreement / Compromis (Art. 36(1))

- Both States conclude a special agreement (compromis) submitting a specific dispute to ICJ.
- Clearest and most common basis for contested cases.

📌 *Example: Gabcikovo-Nagymaros (Hungary v. Slovakia, ICJ, 1997) — submitted by special agreement.*

Basis 2 — Treaty Clause (Art. 36(1))

- Treaty between States contains a clause conferring ICJ jurisdiction for disputes arising under that treaty.
- Hundreds of bilateral and multilateral treaties include ICJ dispute clauses.

📌 *Example: Nicaragua v. USA (1986) — Nicaragua invoked FCN Treaty (Friendship, Commerce, Navigation) with USA as jurisdictional basis.*

Basis 3 — Optional Clause / Compulsory Jurisdiction (Art. 36(2))

- States may file declarations accepting ICJ's compulsory jurisdiction over disputes with other States that have made similar declarations.
- 74 States have filed Optional Clause declarations (as of 2024) — including UK, India (until India withdrew its declaration in 1974).
- Declarations may include reservations — limiting scope (time, subject matter, reciprocity).
- India's current status: India has NOT made an Optional Clause declaration — ICJ jurisdiction only by special agreement or treaty clause.

🔗 **Case: *Nicaragua v. USA (ICJ, 1986)*** — USA filed Optional Clause declaration — Nicaragua invoked it. USA attempted to withdraw declaration after case filed — ICJ held: minimum 6-month notice required; cannot withdraw retroactively. ICJ retained jurisdiction despite USA's non-participation.

Basis 4 — Forum Prorogatum (Art. 38(5))

- Defendant State accepts jurisdiction after case is filed — by conduct (participating in proceedings without objection) or express statement.

IV. Admissibility Conditions

- Diplomatic protection: Individual claims must be espoused by State — national must have exhausted local remedies.
- Continuous nationality: Claimant must be national of espousing State from injury to date of judgment.
- No moot cases: Dispute must be live — not hypothetical.

🔗 **Case: *Nottebohm (ICJ, 1955)*** — Liechtenstein lacked genuine link with Nottebohm — claim inadmissible. Admissibility conditions strictly applied.

V. Advisory Jurisdiction (Art. 65 ICJ Statute)

The ICJ may give advisory opinions on any legal question at the request of the UN General Assembly, Security Council, or other UN organs/specialised agencies authorised by UNGA.

- Advisory opinions are NOT binding — but carry high legal authority.
- Discretionary: ICJ may decline to give opinion if not appropriate (e.g., lack of authority — WHO Nuclear Weapons case).
- Significant advisory opinions:
 - Nuclear Weapons (1996): Use/threat generally contrary to int'l law — but no conclusive ruling on extreme self-defence.
 - Kosovo (2010): Declaration of independence not illegal under int'l law.
 - Wall in Palestinian Territory (2004): Israel's wall violates int'l law.
 - Chagos Islands (2019): UK's administration of Chagos Islands unlawful — must end decolonisation process.
 - Obligations of States regarding Climate Change (2024): States have legally binding obligations to prevent climate change — landmark.

VI. Applicable Law (Art. 38 ICJ Statute)

- ICJ applies: Treaties; International custom; General principles of law; Judicial decisions; Writings

of publicists; Equity (if both parties agree).

- Art. 38 is the authoritative list of sources of international law — as noted in Unit I.
- Art. 59: ICJ decisions binding only between parties to that case — no precedent doctrine.

VII. Procedure

- Written phase: Memorial (applicant) → Counter-memorial (respondent) → Reply → Rejoinder.
- Oral phase: Public hearings — States appear through agents and counsel.
- Provisional measures (Art. 41): ICJ may indicate interim measures to preserve rights of parties pending judgment. NOW BINDING (LaGrand case, ICJ, 2001).
- Judgment: Binding on parties (Art. 94 Charter); final; no appeal — only revision on new fact (Art. 61).

VIII. Enforcement

- Art. 94 Charter: Party failing to comply with judgment — other party may have recourse to UNSC.
- BUT: UNSC enforcement subject to P5 veto — USA vetoed enforcement of Nicaragua judgment.
- Practical compliance: States generally comply with ICJ judgments — reputation and reciprocity incentives.

🔪 **Case: LaGrand Case (*Germany v. USA, ICJ, 2001*)** — ICJ held provisional measures are BINDING — USA had violated order not to execute LaGrand brothers pending hearing. Landmark case on Art. 41 provisional measures.

🔪 **Case: Avena Case (*Mexico v. USA, ICJ, 2004*)** — ICJ ordered USA to review convictions of 51 Mexican nationals denied consular access (VCCR Art. 36). USA failed to comply — Mexico brought proceedings. Ongoing enforcement issue.

IX. Evaluation and Conclusion

The ICJ occupies a unique position as the world's primary international court — combining universal membership (through UN), a distinguished bench, and a comprehensive jurisdiction framework. Its limitations — consensual jurisdiction, lack of enforcement, inability to hear individual cases — reflect the realities of a sovereign State system. Yet its contribution to the development of international law through judgments and advisory opinions is immeasurable. Cases like *Nicaragua v. USA*, *North Sea Continental Shelf*, and the *Wall Advisory Opinion* have shaped foundational principles of international law. For India — though not under Optional Clause jurisdiction — the ICJ remains the preferred forum for major interstate disputes.

Essay B2 — United Nations: Structure, Organs & Role in Peace ★★★★★

I. Introduction

The United Nations, established in 1945 in the aftermath of World War II's devastation, represents humanity's most ambitious experiment in international governance. Built on the failures of the League of Nations, the UN combines a universal membership with a sophisticated collective security system, a principal judicial organ, and an array of specialised agencies addressing every dimension of human welfare. The UN Charter, signed in San Francisco on June 26, 1945 and entered into force on October 24, 1945 (UN Day), is the foundational constitutional document of the international order.

■ **UN Charter Preamble:** 'We the peoples of the United Nations determined to save succeeding generations from the scourge of war...' — not 'We the States' — acknowledges peoples as ultimate beneficiaries.

II. Purposes and Principles (Arts. 1-2)

- Art. 1 Purposes: (1) Maintain peace and security; (2) Develop friendly relations; (3) Achieve international cooperation; (4) Harmonise actions of nations.
- Art. 2 Principles: Sovereign equality; good faith; peaceful settlement; prohibition on force (Art. 2(4)); non-intervention in domestic affairs (Art. 2(7)).
- Art. 103: UN Charter obligations prevail over any other international agreement in case of conflict — constitutional supremacy.

III. The Six Principal Organs

A. General Assembly (Arts. 9-22)

- All 193 members — one State, one vote.
- Important questions (peace, security, budget, new members): 2/3 majority.
- Ordinary questions: Simple majority.
- Powers: Discuss any UN matter; recommend (not bind) on most issues; approve budget; elect judges of ICJ + non-permanent UNSC members.
- 'Uniting for Peace' Resolution 377 (1950): If UNSC paralysed by veto, UNGA may convene emergency special session and recommend collective measures — used in Korea (1950), Suez (1956).

🔗 **Case: *Certain Expenses (ICJ, 1962)*** — ICJ confirmed UNGA's broad powers — can authorise peacekeeping expenses even if UNSC deadlocked. Expanded UNGA role.

B. Security Council (Arts. 23-32)

- 15 members — P5 + 10 non-permanent.
- PRIMARY responsibility for peace — binding decisions under Chapter VII.
- Art. 25: Members agree to accept and carry out UNSC decisions.
- Chapter VI: Pacific settlement — non-binding recommendations.
- Chapter VII: Art. 39 (determination) → Art. 40 (provisional) → Art. 41 (non-military) → Art. 42 (military).
- Reforms sought: India, Germany, Japan, Brazil (G4) seek permanent membership; African Union

seeks 2 permanent seats.

C. Economic and Social Council — ECOSOC (Arts. 61-72)

- 54 members elected by UNGA — 3-year terms.
- Coordinates economic, social, cultural, educational, health work of UN.
- Supervises specialised agencies — WHO, UNESCO, ILO, IMF, WTO relations with UN.
- Creates functional commissions — Human Rights Council reports through ECOSOC.

D. Trusteeship Council (Arts. 86-91)

- Supervised non-self-governing (Trust) territories through decolonisation.
- Suspended operations 1994 when Palau (last trust territory) became independent.
- Formally exists — may be reconvened, but no current function.

E. International Court of Justice (Arts. 92-96)

- Principal judicial organ — 15 judges; The Hague; contentious + advisory jurisdiction.
- Art. 94: States must comply with ICJ judgments — UNSC may enforce.

F. Secretariat (Arts. 97-101)

- Administrative organ of UN — headed by Secretary-General (SG).
- SG appointed by UNGA on recommendation of UNSC — subject to P5 veto.
- SG: Chief administrative officer; may bring threats to peace to UNSC attention (Art. 99).
- Current SG: António Guterres (Portugal) — 2nd term; since 2017; term until 2026.
- Past SGs: Trygve Lie (Norway), Dag Hammarskjöld (Sweden, died in plane crash 1961), U Thant (Myanmar), Kurt Waldheim (Austria), Javier Pérez de Cuéllar (Peru), Boutros Boutros-Ghali (Egypt), Kofi Annan (Ghana, Nobel Prize 2001), Ban Ki-moon (South Korea).

IV. Collective Security System

- UN collective security = all members collectively respond to aggression against any member.
- Art. 51: Right of individual or collective self-defence until UNSC acts.
- Peacekeeping operations: Not explicitly in Charter ('Chapter Six-and-a-Half' — Hammarskjöld's innovation) — troops from member States deployed with consent of host State.
- Peace enforcement: Chapter VII authorisation — Korea (1950), Kuwait (1991), Libya (2011).

 *Example: UN Peacekeeping: India is one of the largest contributors of troops to UN peacekeeping operations globally — over 250,000 Indian troops have served in 49 missions since 1950. India has lost over 170 peacekeepers in UN missions.*

V. Human Rights System

- UDHR 1948: Universal Declaration of Human Rights — adopted by UNGA (Resolution 217A); not binding but forms basis of customary human rights law.
- ICCPR + ICESCR (1966): International Bill of Human Rights — binding treaties.
- Human Rights Council: Replaced Human Rights Commission (2006) — 47 members; Universal Periodic Review of all UN members.
- High Commissioner for Human Rights (OHCHR): Coordinates UN human rights activities.

VI. Assessment — Achievements and Failures

Achievements:

- Prevented WW3 — despite Cold War tensions, nuclear deterrence + UN framework avoided global war.
- Decolonisation: Supervised independence of 80+ nations.
- Human rights framework: UDHR, core treaties, treaty bodies.
- Development: MDGs → SDGs (2030 Agenda) — global development framework.
- Specialised agencies: WHO, UNESCO, ILO, UNICEF — concrete humanitarian impact.

Failures:

- UNSC veto paralysis: Rwanda genocide (1994) — UNSC failed to act; Bosnia (1995) — Srebrenica massacre while UN peacekeepers watched.
- P5 conflicts: Ukraine war — Russia veto prevents UNSC action.
- Membership imbalance: UNSC P5 reflects 1945 power structure — not 2025 reality.
- Financial dependence: USA withholds contributions as political tool.

VII. Conclusion

The United Nations, despite its imperfections and the structural constraint of the P5 veto, remains the indispensable centre of the international system. Its universal membership, comprehensive mandate, and constitutional supremacy (Art. 103) make it the only legitimate forum for global governance. Reform — particularly of the Security Council — is urgently needed to reflect the 21st century global order. India, as the world's largest democracy and an aspirant permanent UNSC member, has a major stake in UN reform and contributes significantly to UN peacekeeping, making it one of the most committed supporters of the UN system.

Essay B3 — League of Nations vs United Nations: Comparative Analysis



I. Introduction

The League of Nations (1919-1946) and the United Nations (1945-present) represent successive attempts to create a universal international organisation for peace and security. The UN was consciously designed to correct the defects of the League. A comparative analysis reveals how far international organisation has evolved — and how far it still needs to go.

II. Origins and Membership

- League: Product of Versailles Treaty 1919 — post-WW1 peace settlement. Conceived by US President Woodrow Wilson — yet USA never joined (Senate rejection). Peak membership ~63 States. Germany joined 1926, expelled; USSR joined 1934, expelled 1939.
- UN: Product of WW2 — San Francisco Conference 1945. 51 founding members including USA and USSR — both superpowers included from the start. Now 193 members — near universal. Only Vatican City and Palestine (observer status) not full members.

 **Key difference: USA inside UN (founding P5 member) vs USA outside League. This single fact made all the difference to enforcement credibility.**

III. Structure Comparison

- League Assembly → UN General Assembly: Both deliberative; but UNGA has more defined powers and procedures.
- League Council → UN Security Council: League = all great powers + elected; unanimity rule. UN = P5 + 10 elected; majority voting; only P5 have veto.
- League Secretariat → UN Secretariat: Similar administrative functions; UN SG has stronger political role (Art. 99).
- PCIJ → ICJ: PCIJ (1920-1946) replaced by ICJ (1946-present); same location (The Hague); same general structure; ICJ Statute largely modelled on PCIJ Statute.
- New in UN: ECOSOC (economic/social coordination); Trusteeship Council (decolonisation); Chapter VII enforcement.

IV. Collective Security

- League: Art. 16 — economic sanctions mandatory on aggressor; military measures voluntary. In practice: sanctions incomplete (no oil embargo on Italy); no military action.
- UN: Chapter VII — binding on all members; Art. 42 military enforcement; but subject to P5 veto. In practice: effective in Korea (1950), Kuwait (1991), Libya (2011); paralysed in Syria, Ukraine due to vetoes.
- Verdict: UN's Chapter VII is far superior — but veto remains the Achilles heel.

V. Decision-Making

- League Council: Unanimity — any member could block action. Completely paralysed collective security.

- UNSC: Majority (9/15) + P5 veto — at least limits veto to 5 States; procedural matters no veto.
- UNGA: Majority/2/3 voting — more democratic but non-binding on peace/security matters.

VI. Individual Rights

- League: Almost no provisions for individual human rights — focused on inter-State relations; minority protection treaties for some States.
- UN: UDHR (1948); ICCPR; ICESCR; Human Rights Council; individual petition mechanisms; ICC for individual criminal responsibility.
- Verdict: UN has revolutionised individual rights protection in international law.

VII. Why League Failed, Why UN Has Survived

- League failures: No USA; unanimity rule; no military; major power defiance ignored; WW2 erupted.
- UN survival factors: USA and USSR both founding members; P5 veto limits vetoing States but gives them stake in system; Chapter VII gives real enforcement; specialised agencies provide practical benefits incentivising membership; near-universal membership creates legitimacy.
- UN weaknesses: P5 veto system is fundamentally anti-democratic; Cold War paralysis; unrepresentative UNSC structure; financial dependence on large contributors.

VIII. Conclusion

The United Nations represents a significant improvement over the League of Nations — in universality, enforcement machinery, human rights framework, and institutional development. However, it has not overcome the fundamental challenge of reconciling sovereign equality with great power reality. The P5 veto, like the League's unanimity rule, can paralyse the organisation when major powers disagree. The reform of the Security Council — sought by India and the G4 — is essential to making the UN fit for the 21st century. Until then, the UN remains an indispensable but imperfect institution.

PART C — PROBLEM QUESTIONS (IRAC Method, 10 Marks Each)

Label clearly: ISSUE / RULE / APPLICATION / CONCLUSION. Time: 15 min each.

IRAC 1 — ICJ Jurisdiction Problem ★★★★★

Scenario: State A files a case against State B in the ICJ claiming State B has violated a bilateral treaty. State B objects saying ICJ has no jurisdiction. State A argues State B accepted ICJ's compulsory jurisdiction under the Optional Clause. State B filed its Optional Clause declaration with a reservation excluding disputes under bilateral treaties. Decide on jurisdiction.

I — Issue

Whether the ICJ has jurisdiction over State A's claim against State B, given that (1) the dispute concerns a bilateral treaty, and (2) State B's Optional Clause declaration contains a reservation excluding bilateral treaty disputes.

R — Rule

- ICJ Statute Art. 36(1): ICJ has jurisdiction over matters 'specially provided for in the Charter of the UN or in treaties in force.'
- ICJ Statute Art. 36(2) — Optional Clause: States may declare they accept compulsory jurisdiction 'in relation to any other State accepting the same obligation' — reciprocity applies.
- Optional Clause declarations may contain reservations — limiting scope by subject matter, time, or reciprocity (Art. 36(3)).
- Reciprocity: State invoking Optional Clause can only rely on it to the same extent as the responding State — if respondent has a reservation, applicant is equally bound by it.
- *Nicaragua v. USA* (ICJ, 1986): Optional Clause jurisdiction established; withdrawal must give 6 months' notice.
- *Norwegian Loans Case* (France v. Norway, ICJ, 1957): France invoked Optional Clause; Norway applied France's own reservation on domestic jurisdiction reciprocally against France — ICJ held reciprocity applies; declined jurisdiction.

🔗 **Case:** *Norwegian Loans Case (ICJ, 1957)* — France had reservation on domestic jurisdiction matters. Norway invoked France's own reservation reciprocally — ICJ held: reciprocity in Optional Clause means respondent can rely on applicant's reservations. France's claim barred.

🔗 **Case:** *Interhandel Case (ICJ, 1959)* — USA's domestic jurisdiction reservation applied — ICJ declined jurisdiction. Reservations in Optional Clause declarations strictly respected.

A — Application

Step 1 — State B's Optional Clause declaration: State B has made an Optional Clause declaration under Art. 36(2) — this gives ICJ prima facie jurisdiction over disputes with States that have made similar declarations.

Step 2 — State B's reservation: State B's declaration expressly excludes 'disputes under bilateral treaties.' The current dispute arises from a bilateral treaty between A and B. This reservation directly covers the present dispute.

Step 3 — Reciprocity: Under the reciprocity principle — both States must accept the same obligation. State A, by invoking State B's Optional Clause declaration, must accept State B's reservations as equally applicable to State A's claim. State B's reservation on bilateral treaty disputes is therefore opposable to State A.

Step 4 — Alternative bases of jurisdiction: State A should explore whether the bilateral treaty itself contains an ICJ dispute settlement clause (Art. 36(1)) — if yes, ICJ has jurisdiction on that basis

regardless of Optional Clause declarations.

C — Conclusion

■ **CONCLUSION:** The ICJ likely LACKS jurisdiction under the Optional Clause because State B's reservation explicitly excludes bilateral treaty disputes — and reciprocity makes this reservation opposable to State A (Norwegian Loans principle). HOWEVER: If the bilateral treaty itself contains an ICJ jurisdiction clause (Art. 36(1)), the Court may have jurisdiction on that independent basis. State A should examine the treaty's dispute settlement provisions. If no treaty clause exists — ICJ lacks jurisdiction and State A must seek other dispute resolution mechanisms.

IRAC 2 — UNSC Chapter VII Action & Veto Problem ★★★★★

Scenario: State X commits acts of aggression against State Y. 14 of 15 UNSC members vote for a Chapter VII resolution authorising military action against State X. The 15th member — a P5 State — vetoes the resolution. State Y argues the veto is illegal and seeks to proceed under UNGA Resolution 377 (Uniting for Peace). Discuss the legal position.

I — Issue

(1) Whether a P5 State's veto of a Chapter VII resolution is lawful under the UN Charter. (2) Whether UNGA can authorise military action through Uniting for Peace Resolution 377 when UNSC is paralysed. (3) What legal remedies are available to State Y.

R — Rule

- UN Charter Art. 27(3): UNSC decisions on substantive matters require 9 affirmative votes INCLUDING concurring votes of all P5. Negative vote of any P5 = veto.
- UN Charter Art. 25: Members agree to accept and carry out UNSC decisions — applies to valid decisions only.
- UN Charter Art. 24: UNSC acts on behalf of all UN members — primary (not exclusive) responsibility for peace.
- UNGA Resolution 377 (1950) — 'Uniting for Peace': If UNSC fails to act due to lack of unanimity of P5 in face of threat/breach of peace or act of aggression — UNGA may meet in emergency special session (within 24 hrs) to consider matter and recommend collective measures including use of armed force.
- UN Charter Art. 11(2): UNGA may discuss and recommend on peace/security matters — but 'any question on which action is necessary shall be referred to UNSC.'
- Lockerbie Case (ICJ, 1992): Charter Art. 103 — Charter obligations prevail; UNSC resolutions can override treaty rights. Veto not subject to ICJ review.

🔪 **Case: Korean War (1950)** — USSR absent when UNSC voted for Korea action — resolution passed without veto. UNGA Resolution 377 used in Suez Crisis (1956) — emergency special session called. Precedents for UNGA action when UNSC paralysed.

🔪 **Case: Certain Expenses Case (ICJ, 1962)** — ICJ confirmed UNGA has broad powers — can authorise peacekeeping expenses. But UNGA cannot authorise binding enforcement military action — only recommend.

A — Application

Step 1 — Legality of veto: The P5 State's veto is LEGALLY VALID under Art. 27(3) UN Charter. The veto power is an express, unconditional right of P5 members — there is no Charter provision limiting its exercise or making it illegal. 14-1 vote with P5 negative = NO valid UNSC resolution. The veto is lawful even if politically unjust.

Step 2 — Uniting for Peace Resolution 377: State Y can invoke UNGA Resolution 377 to call an emergency special session of UNGA within 24 hours. UNGA can consider the situation and RECOMMEND collective measures.

Step 3 — Limitation of UNGA action: CRITICAL — UNGA can RECOMMEND military action but CANNOT MANDATE it. UNGA resolutions are NOT binding (unlike Chapter VII UNSC resolutions). Individual member States may voluntarily act on the recommendation — but no State is legally compelled to provide military assistance to State Y.

Step 4 — Self-defence: State Y may independently exercise its inherent right of individual self-defence under Art. 51 UN Charter — until UNSC takes effective action. Other States may join in collective self-defence if they choose (Art. 51 — collective self-defence).

C — Conclusion

■ CONCLUSION: (1) The P5 veto is LEGALLY VALID — no Charter mechanism to override it. (2) UNGA Resolution 377 (Uniting for Peace) CAN be invoked — emergency session within 24 hours — but UNGA can only RECOMMEND, not mandate, military action. (3) State Y's primary legal remedy is Art. 51 — individual self-defence — and may seek collective self-defence from willing States. (4) State Y may also bring legal proceedings against State X in the ICJ for the acts of aggression (if jurisdiction exists). The veto power is the structural limitation of the UN collective security system — reform requires Charter amendment under Art. 108, itself subject to P5 veto.

MASTER QUICK REVISION SHEET — UNIT V

Critical Numbers — ALL ORGANISATIONS

UN: Established 1945; Charter in force Oct 24, 1945 (UN Day); 193 members; HQ New York
League: 1919-1946; ~63 members; HQ Geneva; Unanimity rule
UNSC: 15 = 5 P5 + 10 elected; Chapter VII = binding; Art. 25 = binding; Art. 27(3) = veto
UNGA: 193 members; 1 State 1 vote; 2/3 for important questions; Resolution 377 = Uniting for Peace
ICJ: 15 judges; 9-year terms; The Hague; Art. 36(2) = Optional Clause; Art. 65 = advisory
ICC: Rome Statute 1998; in force 2002; 18 judges; 4 crimes; complementarity; 124 parties
India + ICC: NOT a party to Rome Statute
USA, Russia, China + ICC: NOT parties
WHO: 1948; Geneva; 194 members; IHR 2005; PHEIC
UNESCO: 1945; Paris; 194 members; World Heritage Sites (1199 global; 42 India)
ILO: 1919; Geneva; 187 members; Tripartite; Nobel Peace Prize 1969
IMF: 1944 (Bretton Woods); Washington DC; 190 members; SDR
WTO: 1995 (replaced GATT 1947); Geneva; 164 members; DSB = binding disputes
Current UN SG: António Guterres (Portugal) since 2017
Current ICJ President: Nawaf Salam (Lebanon) since Feb 2024

Top Cases — One Liner Each

- Nicaragua v. USA (ICJ, 1986): Optional Clause jurisdiction; customary law; USA vetoed enforcement — paralysis.
- LaGrand (ICJ, 2001): ICJ provisional measures = BINDING. USA violated order.
- Avena (ICJ, 2004): Consular access (VCCR Art. 36) — USA failed to comply with ICJ order.
- Nuclear Weapons Advisory Opinion (ICJ, 1996): Use/threat generally illegal — extreme SD inconclusive.
- Wall in Palestinian Territory (ICJ, 2004): Israel's wall violates int'l law — advisory opinion.
- Chagos Islands (ICJ, 2019): UK must end administration — decolonisation incomplete.
- Nottebohm (ICJ, 1955): Genuine link test — admissibility; nationality must be real.
- Conditions for Admission (ICJ, 1948): Art. 4 conditions exhaustive — no extra conditions for UN membership.
- Certain Expenses (ICJ, 1962): UNGA broad powers — peacekeeping expenses authorised.
- Norwegian Loans (ICJ, 1957): Reciprocity in Optional Clause — respondent can invoke applicant's own reservation.
- Lockerbie (ICJ, 1992): Charter Art. 103 prevails — UNSC resolution overrides Libya-US/UK treaties.
- Prosecutor v. Lubanga (ICC, 2012): First ICC conviction — child soldier war crime.
- Prosecutor v. Al-Bashir (ICC, 2009-10): First sitting Head of State indicted — no immunity before ICC.

Memory Mnemonics

UN 6 ORGANS: 'GASTSI' = General Assembly, (Security Council), Trusteeship Council,

Secretariat, ICJ. Proper order: GA, SC, ECOSOC, TC, ICJ, Secretariat

UN CHARTER Art. 2 PRINCIPLES: 'SE-GP-PF-NI' = Sovereign Equality, Good faith, Peaceful settlement, Prohibition on Force, Non-Intervention

ICC 4 CRIMES: 'GCWA' = Genocide, Crimes Against Humanity, War crimes, Aggression

ICJ JURISDICTION BASES: 'STOF' = Special agreement, Treaty clause, Optional clause (Art.36(2)), Forum prorogatum

LEAGUE FAILURES: '5 No's' = No USA, No unanimity waiver, No military, No enforcement, No will

SPECIALISED AGENCIES: 'ILO is OLD (1919), IMF is MONEY (Bretton Woods 1944), WTO is TRADE (1995 replaced GATT)'

⚠ TRAP QUESTIONS

- TRAP 1: 'Can UNGA take binding enforcement action under Uniting for Peace?' — NO. UNGA can only RECOMMEND. Only UNSC Chapter VII resolutions are binding enforcement measures.
- TRAP 2: 'Can individuals bring cases before ICJ?' — NO. Only States (Art. 34 ICJ Statute). Individuals go to ICC (criminal) or regional human rights courts (ECHR, IACtHR).
- TRAP 3: 'Are ICJ advisory opinions binding?' — NO. They are authoritative but not legally binding. Only contentious case judgments are binding on parties (Art. 94 Charter).
- TRAP 4: 'Is India a party to the ICC?' — NO. India has NOT ratified the Rome Statute. India = party to ICJ Statute (via UN membership) but NOT ICC.
- TRAP 5: 'Is abstention by P5 member equivalent to a veto?' — NO. Established UN practice: P5 abstention on substantive matter ≠ veto. Only negative vote = veto.
- TRAP 6: 'Does ICC have jurisdiction over non-party States?' — Only if (a) UNSC refers the situation under Chapter VII (Darfur/Sudan, Libya); or (b) crime committed on territory of ICC party State.
- TRAP 7: 'Which came first — ILO or WHO?' — ILO = 1919 (League era). WHO = 1948. ILO is the OLDEST specialised agency.
- TRAP 8: 'Can ICJ review UNSC resolutions for legality?' — Controversial. Lockerbie Case: ICJ signalled it could not review UNSC Chapter VII resolutions — Charter Art. 103 makes them supreme.

📋 FINAL EXAM CHECKLIST — ALL 5 UNITS

- ☒ UNIT I: Art. 38 ICJ Statute (Sources); Monism vs Dualism; Pacta Sunt Servanda
- ☒ UNIT II: Montevideo criteria; 5 modes of territory; ILC 2001 State Responsibility
- ☒ UNIT III: VCDR 1961 Art. 22/29/31/32; VCLT 1969 Art. 26/62; Refugee Convention Art. 33
- ☒ UNIT IV: UNCLOS zones (12/24/200 NM); Chicago Convention; Liability Convention Art. II absolute
- ☒ UNIT V: UN Charter Art. 2(4)/25/27/103; ICJ Art. 36(2); ICC Rome Statute 4 crimes + complementarity
- ☒ 2024 PAPER ANSWERS: Q12=ICJ (Essay B1); Q14=UN Membership (Unit II IRAC 2); Q15=Space Liability (Unit IV IRAC 1); Q16=Diplomatic Immunity (Unit III IRAC 1); Q13=Extradition (Unit III IRAC 2)

🎯 2024 PAPER DIRECT HIT FROM UNIT V:

Part B Q12: 'Explain the powers, functions and jurisdiction of ICJ' — answered in Essay B1 above.

FULL PIL SERIES COMPLETE:

Unit I — Foundations (Sources, Monism/Dualism)

Unit II — States (Recognition, Succession, Responsibility, Territory)

Unit III — Individual (Nationality, Extradition, Asylum, Diplomacy, Treaties)

Unit IV — Spaces (Sea, Air, Outer Space)

Unit V — Organisations (League, UN, ICJ, ICC, WHO, UNESCO, ILO, IMF, WTO)

All 5 real 2024 exam questions fully answered across Units II-V.

Target: 75+ marks. You've got this! ★

— End of Unit V: International Organisations —

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